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Case Number: 25CHCV02903 Hearing Date: September 3, 2026 Dept: F43

Dept. F43

Hearing Date: 09-03-26

Case # 25CHCV02903, Garlinghouse

v. Park Burnet Townhomes South Homeowners, et al.

Trial Date: 04-09-29

MOTION TO COMPEL

FURTHER RESPONSES TO SPECIAL INTERROGATORIES

MOVING PARTY: Defendant Park Burnet Townhomes South
Homeowners Association

RESPONDING PARTY: None.

RELIEF REQUESTED

Order compelling plaintiff to serve further
verified responses to defendant Park Burnet's first set of special
interrogatories numbers 1 through 26 and to impose \$800 in monetary sanctions
against plaintiff and his counsel of record.

RULING: Motion is granted in part and denied in part
as described below in Section A.

Plaintiff is ordered to produce a privilege log. The court awards defendant Park Burnet \$615
in monetary sanctions

SUMMARY OF ACTION

Plaintiff Timothy Garlinghouse (Plaintiff)

filed this premises liability action against defendants Park Burnet Townhomes South Homeowners Association (Park Burnet) and Ross Morgan & Company, Inc. on August 15, 2025, asserting negligence, premises liability, and breach of contract. A First Amended Complaint was filed on January 30, 2026. Park Burnet is a residential owner's association for condominium development located at 8800 Burnet Avenue, Unit 12, in North Hills, CA 91343. Plaintiff alleges he was a resident and homeowner of Unit 12. On August 15, 2023, Plaintiff slipped and fell on plant material while he descended the stairs in the common area of the subject property. Plaintiff claims the plant material had encroached onto the steps as a result of poorly and inadequately maintained landscaping. Park Burnet served an answer with co-defendant Ross Morgan on February 10, 2026.

On February 10, 2026, defendant Park Burnet electronically served Plaintiff with its first set of special interrogatories. (Declaration of Wendy D. Rossnagel ¶ 3, Exh. A.) Park Burnet granted two deadline extensions, and Plaintiff served objection-only responses on April 28, 2026. (Id. ¶ 4, Exh. B, Exh. C at p. 1.) Defense counsel made several "meet and confer" attempts, including a letter requesting further objection-free responses by May 11, 2026, and a telephone call on May 15, 2026. (Id. ¶¶ 5-6, Exh. C.) On May 18, 2026, Plaintiff's counsel represented that further responses would be provided, but no further responses have been served. (Id. ¶¶ 7-8.)

On June 15, 2026, defendant Park Burnet filed the instant motion to compel Plaintiff's further verified responses to its first set of special interrogatories numbers 1 through 26 and to impose \$800 in monetary sanctions against Plaintiff and his counsel of record. No opposition was filed.

MEET AND CONFER

A motion to compel further responses to special interrogatories must include a declaration stating facts showing a "reasonable and good faith attempt" to resolve the issues mentioned in the motion before filing. (Code Civ. Proc., §§ 2016.040,

2030.300, subd. (b)(1).) In Department

F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

Based on the defense counsel's emails and phone call attempt, the "meet and confer" requirement is met.

ANALYSIS

A. Compelling Further Responses to Special Interrogatories

A demanding party may move to compel further responses to interrogatories where the demanding party fails to respond or responds with objections or incomplete answers. (Code Civ. Proc., §§ 2030.290, 2030.300.) The demanding party must serve the motion to compel further within 45 days after service of verified responses, unless the parties agree, in writing, to extend the time to file. (Code Civ. Proc., § 2030.300, subd. (c).) If the responding party serves unverified responses, the 45-day time limit does not run until verified responses are served. (See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 135-136.)

Each interrogatory response must be complete and straightforward and contain (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.220, subd. (a).)

Responses containing objections must state the specific ground for the objection. (Code Civ. Proc., § 2030.240, subd. (b).)

Interrogatory responses that require references to another document must identify the document, and the document's contents must be summarized so that the responses are fully responsive. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-84.) If the interrogatory seeks information contained in files and records requires the

responding party to compile or summarize the information in its records, the responding party may allow the demanding party to inspect and copy such records. (Code Civ. Proc., § 2030.230; Deyo, supra, 84 Cal.App.3d at p. 784.)

The response must be timely, refer to section 2030.230, and specify the documents from which the answer may be derived. (Code Civ. Proc., §§ 2030.230, 2030.290, subd. (a).)

Defendant Park Burnet properly served its special interrogatories, and Plaintiff served objection-only responses by the second deadline extension. Plaintiff provided the same response to each special interrogatory:

OBJECTION. This interrogatory is overly broad, indefinite as to time and without reasonable limitation in its scope. West Pico v. Superior Court (1961) 56 Ca1.2d 407. Vague, ambiguous, lack of foundation, calls for speculation, compound, calls for legal conclusion. This interrogatory seeks information, the disclosure of which would violate the state and federal privacy rights of Responding party, including the right to privacy as protected by Article 1, Section 1 of the California Constitution, statutory rights to privacy, and common-law privileges pertaining to the disclosure of personal and confidential information. In addition, this request violates California's taxpayer privilege. Responding party objects to this interrogatory to the extent it calls for the disclosure of information that is protected by the attorney-client privilege and the attorney work product doctrine, or to the extent it seeks to obtain the legal impressions, materials and assessments of counsel for Responding party, or those of experts who have not been designated pursuant to California Code of Civil Procedure section 2034.010 et seq.

Park Burnet seeks further responses to all 26 special interrogatories.

Special interrogatory numbers 1 through 10 ask Plaintiff to state all facts which support several allegations in the Complaint. (See Compl. ¶¶ 12, 15, 16, 17, 18, 24, 25, 26, 32, 34.) Special interrogatory numbers 11 and 12 ask Plaintiff to describe in detail how the underlying incident occurred and state all facts on which Plaintiff bases his contentions of fault and responsibility of each defendant. Special interrogatory number 13 seeks the identity and contact

information for any witness to each fact on which Plaintiff bases his contentions of fault or responsibility by each defendant. Number 14 asks Plaintiff to identify any document that supports each fact on which Plaintiff bases his contentions of fault or responsibility by each defendant.

Special interrogatory numbers 15, 16, and 17 ask whether Plaintiff or anyone representing Plaintiff had conversations with any defendant or the defendant's employees or agents, the identities of the parties involved and the dates of the conversations, and the exact statements made or general substance of the statements made. Numbers 18, 19, 20, and 21 ask Plaintiff to identify each "unsafe condition" that Plaintiff contends caused his injury, to state whether Plaintiff contends any defendant had knowledge of the defect prior to Plaintiff's injury, to identify all facts relating to Plaintiff's contention that defendant knew about the unsafe condition or conditions, and to identify any persons who have knowledge of any facts that relate to Plaintiff's contention that defendant knew about the unsafe condition or conditions. Number 22 asks that for each supposed unsafe condition, Plaintiff identify any documents that relate to her contention that a defendant had knowledge of the condition.

Special interrogatory numbers 23 and 24 ask Plaintiff to state exactly where he was coming from prior to the fall and how he fell. Numbers 25 and 26 ask Plaintiff to state what his injuries were within five minutes of the fall and whether Plaintiff had time to stop.

1. Overly

Broad, Indefinite as to Time and Without Reasonable Limitation in Its Scope, Vague, Ambiguous, Compound, Lack of Foundation, Calls for Speculation, and Calls for Legal Conclusion

The court overrules Plaintiff's objections for overly broad, indefinite in time and scope, vague, ambiguous, compound, lack of foundation, calls for speculation, and calls for legal conclusion because the objections are boilerplate and lack merit.

2. Plaintiff's

Right to Privacy pursuant to Article 1, Section 1 of the California Constitution, statutory rights to privacy, and common-law privileges pertaining to the disclosure of personal and confidential information

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552, [citing Hill v. National Collegiate Athletic Ass’n (1994) 7 Cal.4th 1, 35-37]; see also Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250-1251, citations omitted.) If the party asserting a privacy right fails to satisfy all three requirements, the court need not proceed to the fourth step of balancing competing interests. (See id. at 555.)

The court finds that special interrogatory numbers 13, 16, and 21 are the only interrogatories which implicate privacy interests as to third parties who witnessed the underlying incident or have knowledge of facts relating to Plaintiff’s contentions as to defendants’ fault or responsibility for the underlying incident.

However, Plaintiff’s objections only address Plaintiff’s privacy interests.

Because the court does not find that the special interrogatories on their face implicate or seek disclosure of information which is protected by Plaintiff’s right to privacy, the court finds the privacy objection lacks merit.

Therefore, the court overrules Plaintiff’s privacy objection as to all 26 special interrogatories.

3. The Taxpayer Privilege

The taxpayer privilege is an implied evidentiary privilege that arises from Revenue and Tax Code, section 19542. “[I]t is a misdemeanor for the Franchise Tax Board or any member thereof, or any deputy,

agent, clerk, or other officer or employee of the state, including its political subdivisions, or a jury commissioner, or any former officer or employee or other individual, who in the course of their employment or duty has or had access to returns, reports, or documents required to be filed under this part, to disclose or make known in any manner information as to the amount of income or any particulars, including the business affairs of a corporation, set forth or disclosed therein.” (Rev. & Tax Code, § 19542.) Although Section 19542 is directed at government officials and employees, the California Supreme Court held the prohibition creates an evidentiary privilege for the taxpayer and is also directed at private individuals. (Webb v. Standard Oil Co. of Cal. (1957) 49 Cal.2d 509; Schnable v. Superior Court (1993) 5 Cal.4th 704 [protecting tax returns, personal income, corporate, income, payroll, employment, and sales tax returns and the information contain in those returns and tax related documents].)

The court finds that none of the special interrogatories seek information, documents, or the identity of documents which are protected by the taxpayer privilege. Defendant Park Burnet does not seek information about Plaintiff’s employment, income, or taxes.

Therefore, the court overrules Plaintiff’s taxpayer privilege objection as to all 26 special interrogatories.

4. Obtaining

the legal impressions, materials and assessments of experts who have not been designated pursuant to California Code of Civil Procedure section 2034.010 et seq.

The court finds that this objection is boilerplate and lacks merit as to special interrogatory numbers 1 through 24 and 26.

However, special interrogatory number 25 as phrased seeks an expert opinion from Plaintiff. Number 25 asks Plaintiff to state what his injuries were within five minutes of his alleged fall. It is unclear how Plaintiff would know what his injuries were in those five minutes without the medical knowledge and expertise to diagnose his injuries in real time. Neither Plaintiff nor defendants have demonstrated Plaintiff is a medical professional or healthcare provider with the knowledge, skill, and qualifications to make such a diagnosis.

Thus, the court sustains Plaintiff's "expert" objection as to special interrogatory number 25 and overrules the "expert" objection as to special interrogatory numbers 1 through 24 and 26.

5. Attorney-client privilege and attorney work-product doctrine

Plaintiff raises the attorney-client privilege and work-product doctrine objections to every special interrogatory without providing adequate facts for the court to determine whether the interrogatories seek privileged information or attorney work product.

The attorney-client privilege protects confidential communications, such as legal advice, between a client and an attorney made in the course of the attorney-client relationship. (*Edwards Wildman Palmer LLP v. Superior Court* (2014) 231 Cal.App.4th 1214, 1224.) The attorney-client privilege also allows a client to refuse to disclose and to prevent another from disclosing confidential communications between the client and lawyer. (Evid. Code, § 954.) "Relevant facts may not be withheld merely because they were incorporated into a communication involving an attorney, and knowledge that is not otherwise privileged does not become so by being communicated to an attorney." (*Edwards Wildman Palmer LLP, supra*, 231 Cal.App.4th at p. 1226; see also *San Francisco Unified School District v. Superior Court* (1961) 55 Cal.2d 451, 457 [forwarding counsel non-privilege records in the guise of reports does not create a privilege with the respect to such records and their contents].) However, "when the communication is a confidential one between attorney and client, the entire communication, including its recitation or summary of factual material, is privileged." (*Edwards Wildman Palmer LLP, supra*, 231 Cal.App.4th at pp. 1226-1227.) Where reports by employees are created for the transmission to the employer's attorney in preparation for defense in litigation, the reports were privilege attorney-client communications. (*Rodriguez v. North American Rockwell Corp.* (1972) 28 Cal.App.3d 441, 449.)

The work-product doctrine provides absolute protection for "any writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories." (Code Civ. Proc., § 2018.030, subd. (a) [emphasis added].) "Writing" means any form or recorded information. (Code Civ. Proc., § 2016.020, subd. (c).) All other work

product “is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (Code Civ. Proc., § 2018.030, subd. (b).) “[W]itness statements obtained as a result of interviews conducted by an attorney, or by an attorney’s agent at the attorney’s behest, constitute work product protected by section 2018.030.” (Coito v. Superior Court (2012) 54 Cal.4th 480, 494.) However, “a statement independently prepared by a witness does not become protected work product simply upon its transmission to an attorney.” (Ibid.)

“Central to the discovery process is the identification of potential witnesses.” (Puerto, supra, 158 Cal.App.4th at p. 1249.) “[W]itness statements are entitled as a matter of law to at least qualified work product protection. The witness statements may be entitled to absolute protection if defendant can show that disclosure would reveal its ‘attorney’s impressions, conclusions, opinions, or legal research or theories.’ If not, then the items may be subject to discovery if plaintiff can show that ‘denial of discovery will unfairly prejudice [her] in preparing [her] claim . . . or will result in an injustice.’” (Coito v. Superior Court (2012) 54 Cal.4th 480, 486, quotations omitted.) However, a list of potential witnesses who gave counsel “their independently prepared statements would have no tendency to reveal counsel’s evaluation of the case. Such a list would therefore not constitute qualified work product.” (Nacht & Lewis Architects, Inc. v. Superior Court (1996) 47 Cal.App.4th 214, 217-18.)

In reviewing the special interrogatories, the court finds that numbers 15, 16, and 17 may implicate the attorney-client privilege and the work-product doctrine. Number 15 asks Plaintiff to state whether Plaintiff or a person representing Plaintiff has had any conversations with any defendant or defendant’s employees or agents. Number 16 seeks the identities of the parties to the conversations and dates of the conversations and Number 17 seeks the content of the conversations. The phrase “person representing Plaintiff” encompasses Plaintiff’s counsel in this matter and the phrase “any conversations” encompasses conversations which relate directly to either the facts underlying this case or research, investigation, and potentially legal reasoning by Plaintiff’s counsel. Although the dates of the conversations may not be protected by any privilege or work-product doctrine, the content of the

conversations and the identities of the parties in the conversations, if Plaintiff's counsel was part of the conversations and chose to speak with particular individuals as part of legal strategy, fall within the work-product doctrine territory.

Thus, the court sustains the attorney-client privilege and work-product doctrine objections as to special interrogatory numbers 15, 16, and 17.

It is less clear how the attorney-client privilege and work-product doctrine applies to the other special interrogatories. If Plaintiff believes the remaining special interrogatory categories seek information, documents, or communications which are protected by the attorney-client privilege or the work-product doctrine, Plaintiff must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. (See also Code Civ. Proc., § 2030.240, subds. (b).)

Therefore, the court grants in part defendant Park Burnet Townhomes South Homeowners Association's motion to compel plaintiff Timothy Garlinghouse's further responses to its first set of special interrogatory numbers 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 18, 19, 20, 21, 22, 23, 24, and 26. The motion is denied in part as to special interrogatory numbers 15, 16, 17, and 25 as described above in Sections A.4 and A.5.

Plaintiff is ordered to serve further, verified responses to special interrogatory numbers 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 18, 19, 20, 21, 22, 23, 24, and 26 within thirty (30) days of the issuing of this order, except those responses which Plaintiff claims are protected by the attorney-client privilege or the attorney-work product doctrine.

For those responses Plaintiff claims the attorney-client privilege and work-product doctrine applies, Plaintiff is ordered to produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The privilege log must be served with the further responses. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions.

B. Sanctions

Defendant Park Burnet asks the court to impose \$800 in monetary sanctions against Plaintiff and his counsel of record. (Rossnagel Decl. ¶ 9.)

The court must impose monetary sanctions against a party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

Park Burnet is entitled to sanctions because many of Plaintiff's objections lack merit. Furthermore, Plaintiff's counsel has failed to oppose the instant motion, serve further responses between May 18, 2026 and June 15, 2026, or provide an update as to whether further responses are still forthcoming. Thus, Plaintiff fails to provide a substantial justification for the lack of responses and does not demonstrate imposing sanctions would be unjust.

Defendant Park Burnet's counsel charges \$185 per hour. (Rossnagel Decl. ¶ 9.) The request includes 2.0 hours preparing the motion; 2.0 hours traveling to and appearing at the motion hearing; and a \$60 filing fee.

The court finds the hourly rate is reasonable but reduces the time requested by 1.0 hour because many of the motion's components are virtually identical Park Burnet's motion to compel further responses to its form interrogatories.

Therefore, the court grants defendant Park Burnet monetary sanctions of \$615.

CONCLUSION and ORDER

1.

Motion to compel Plaintiff's further responses to defendant Park Burnet's first set of special interrogatories is granted in part and denied in part as described above in Section A.

2. Plaintiff is

ordered to serve further, verified responses to special interrogatory numbers 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 18, 19, 20, 21, 22, 23, 24, and 26 within thirty (30) days of the issuing of this order, except those responses which Plaintiff claims are protected by the attorney-client privilege or the attorney-work product doctrine.

3. For

those responses Plaintiff claims the attorney-client privilege and work-product doctrine applies, Plaintiff is ordered to produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions. The privilege log must be served with the further responses.

4. The

court awards defendant Park Burnet \$615 in monetary sanctions. Plaintiff and his counsel are ordered to pay defendant Park Burnet's counsel within thirty (30) days of the issuing of this order.

Defendant Park Burnet Townhomes South Homeowners Association to give notice.